

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
SALIM BREEDLOVE,

Plaintiff,

SUMMONS

-against-

Plaintiff designates **Bronx County** as
the venue for trial by jury.

CITY OF NEW YORK, JOSE LIZARDO,
UNDERCOVER POLICE OFFICER SHIELD #309, and
JOHN or JANE DOE 1-10, Individually and in their
capacities as police officers,

The basis for venue is where the tort
arose.

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 11, 2019



SIM & DEPAOLA, LLP

BY: Markus A. Wilson, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**P.O. JOSE LIZARDO OF NARCBBX
SHIELD #2113, TAX ID #944739**

One Police Plaza
New York, New York 10038

**UNDERCOVER P.O.
SHIELD #309**

One Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
SALIM BREEDLOVE,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, JOSE LIZARDO,
UNDERCOVER P.O SHIELD #309, and JOHN or JANE
DOE 1-10 Individually and in their capacities as police
officers,

Defendants.
-----X

Plaintiff, SALIM BREEDLOVE, by his attorneys, Sim & DePaola, LLP, for his
complaint against the above Defendants, alleges as follows:

1. The claim arises from a February 24, 2017 incident in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Breedlove. Mr. Breedlove was subsequently charged with Criminal Sale of Marijuana and Criminal and Unlawful Possession of Marijuana and other related charges. As a result, Mr. Breedlove was deprived of his liberty and suffered physical injuries. Mr. Breedlove was wrongfully incarcerated over the course of two (2) days or approximately twenty-seven (27) hours, until the dismissal of charges on April 18, 2018 by the Hon. L. Stroh of the Bronx County Criminal Court.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff SALIM BREEDLOVE (“Mr. Breedlove”) resides at 2175 Lacombe Avenue, Bronx County, State of New York.
4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Police Officer JOSE LIZARDO (“LIZARDO”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant LIZARDO was, at the time relevant herein, a Police Officer under Shield #2113, Tax ID #944739 in NARCB BX, located at One Police Plaza, New York, New York 10038. Defendant LIZARDO is sued in his individual and official capacities.
8. Defendant Undercover Police Officer, Shield #309 (“UC #309”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the

capacity of an undercover agent, servant and employee of the City of New York.

Defendant Undercover Police Officer, Shield #309 was, at the time relevant herein, a Police Officer under Shield #309. Defendant Undercover Police Officer, Shield #309 is sued in his individual and official capacities.

9. At all times relevant Defendants John and Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
10. At all times relevant herein, Defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.
11. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On February 24, 2017, at approximately 7:00 p.m., Mr. Breedlove was walking to a store with a friend around the vicinity of East Tremont Avenue and Devoe Street, Bronx, New York.
17. While Mr. Breedlove was walking down the street, he was confronted by Defendant Lizardo and other officers dressed in plain clothes.
18. Defendants including defendant Lizardo and other defendants whose names are not known to Plaintiff, searched and seized Mr. Breedlove without probable cause.
19. Mr. Breedlove was searched and seized in an unlawful manner by Defendants including defendant LIZARDO and other unidentified officers, when they each physically grabbed Plaintiff's body and arms without probable cause.
20. Mr. Breedlove was placed in handcuffs by Defendants including defendant Lizardo and then taken to the local Precinct where he was processed.
21. Defendants including defendant Lizardo had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Breedlove, as Mr. Breedlove had not committed any crime or violation of the law.
22. Defendants including defendant Lizardo and UC #309 fabricated a false narrative, in which they claimed Mr. Breedlove engaged in a drug transaction, when they knew such claims to be untrue and complete fabrications.
23. Defendants Lizardo and undercover police officer falsely claimed that Plaintiff was in possession of more than twenty-five (25) grams of marijuana, forty-three empty small clear plastic bags, and four clear plastic bags each containing a quantity of marijuana.

24. Defendants Lizardo and UC #309 forwarded their fabricated and false narrative to the District Attorney's Office, so that Plaintiff would be criminally prosecuted.
25. At no time did Mr. Breedlove ever exchange any marijuana, or any other illicit substance or item, for money with any individuals while in the store or walking down the street.
26. Defendants Lizardo and UC #309 were fully aware that Mr. Breedlove was not engaged in any illegal transactions, but knowingly and intentionally chose to state that Mr. Breedlove engaged in acts consistent with an illegal sale of marijuana.
27. Mr. Breedlove was never in actual, constructive or statutory possession of any contraband.
28. Mr. Breedlove had multiple assaults and batteries committed to his person including but not limited to being placed in handcuffs too tight.
29. Mr. Breedlove was subjected to an illegal strip search with a cavity inspection at the police precinct.
30. Mr. Breedlove was released after being in police custody over the course of two (2) days or approximately twenty-seven (27) hours, on or about February 25, 2017, at approximately 7:00 p.m.
31. Defendants, including Lizardo and UC #309 intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Breedlove, namely that Mr. Breedlove was observed to engage in the sale and possession of marijuana.

32. Defendant Lizardo signed the criminal court complaint, knowingly and falsely accusing Mr. Breedlove of Criminal Sale of Marijuana, Criminal Possession of Marijuana and Unlawful Possession of Marijuana.
33. Defendants, including Lizardo and UC #309 never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime.
34. While Plaintiff was unlawfully detained, Defendants, including Lizardo and undercover police officer acted with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Criminal Sale of Marijuana and Criminal Possession of Marijuana and Unlawful Possession of Marijuana.
35. Defendants, including Lizardo and UC #309 suppressed evidence and engaged in conduct undertaken in bad faith, namely fabricating false accounts that Mr. Breedlove was engaged in a drug transaction.
36. Defendants have displayed a pattern and practice of falsely alleging contraband to be in plain view to justify otherwise unwarranted arrests.
37. Defendants have displayed a pattern and practice of falsely arresting individuals present inside of locations where no contraband is observed in plain view and where the arrestees do not reside.
38. During all of the events described, the Defendants, including Lizardo, acted maliciously and with intent to injure Plaintiff.

39. Defendants Lizardo and UC #309 fabricated false accounts of Mr. Breedlove's actions for the purpose of compelling Mr. Breedlove to provide Defendants with information related to more serious crimes.
40. At all times relevant hereto, Defendants, including Lizardo and UC #309 engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
41. As a direct and proximate result of the acts of Lizardo and UC #309, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

42. The above paragraphs are here incorporated by reference as though fully set forth.
43. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
44. Plaintiff was conscious of his confinement.
45. Plaintiff did not consent to his confinement.
46. Plaintiff's arrest and false imprisonment was not otherwise privileged.

47. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

49. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.

51. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.

Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

52. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

53. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

54. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

55. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

56. The above paragraphs are here incorporated by reference as though fully set forth.
57. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
58. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
59. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
60. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
61. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

62. The above paragraphs are here incorporated by reference as though fully set forth.
63. The Defendants, acting under color of state law, violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
64. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

65. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

67. The above paragraphs are here incorporated by reference as though fully set forth.

68. Defendants initiated the prosecution against Plaintiff.

69. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

70. Defendants acted with malice.

71. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.

72. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

74. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

75. The above paragraphs are here incorporated by reference as though fully set forth.
76. Defendants, acting under color of state law, initiated the prosecution against Plaintiff.
77. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
78. Defendants acted with malice.
79. The prosecution was terminated in Plaintiff's favor when he was acquitted of all charges.
80. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
81. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
82. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

83. The above paragraphs are here incorporated by reference as though fully set forth.
84. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
85. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
86. Defendants intended to inflict substantial harm upon Plaintiff.

87. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

88. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

90. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under

42 U.S.C. § 1983 Against Individual Defendants

91. The above paragraphs are here incorporated by reference as though fully set forth.

92. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

93. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

94. Defendants intended to inflict substantial harm upon Plaintiff.

95. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

96. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.

97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

98. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

99. The above paragraphs are here incorporated by reference as though fully set forth.

100. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

103. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

104. The above paragraphs are here incorporated by reference as though fully set forth.

105. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
106. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
107. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
109. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth.
111. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
112. Defendant City breached that duty of care.
113. Defendant City placed defendants in a position where they could inflict foreseeable harm.

114. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
115. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
117. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Defendant City

118. The above paragraphs are here incorporated by reference as though fully set forth.
119. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
120. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
121. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate

indifference towards the rights of those who come into contact with Defendant City's employees.

122. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

123. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

125. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York
June 11, 2019

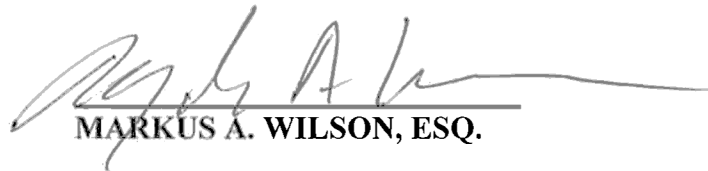


SIM & DEPAOLA, LLP
By: Markus A. Wilson Esq.
Attorneys for Plaintiff
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T: (718) 281-0400
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ATTORNEY VERIFICATION

I, Markus A. Wilson, Esq, an attorney admitted to practice in the courts of New York State, state that I am an associate of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 11, 2019



MARKUS A. WILSON, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SALIM BREEDLOVE,

Plaintiff,

-against-

CITY OF NEW YORK, Individually and in their capacities as police officers, JOSE LIZARDO,
UNDERCOVER PO SHIELD #309, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: Markus A. Wilson
Attorney for Plaintiff(s)
42-40 Bell Boulevard, Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for